Calendar Line 2
Case Name: *Soraya Vela v. Santa Clara County Office of Education*
Case No.: 23CV423212

I. BACKGROUND

Plaintiff Soraya Vela brings this action against defendant Santa Clara County Office of Education ("SCCOE") for employment discrimination and retaliation.

Vela is a licensed clinical social worker and a Latina who speaks Spanish. (First Amended Complaint ("FAC"), ¶ 8.) SCCOE is a public entity responsible for Santa Clara County public schools, facilities, and school employees. (FAC, ¶ 9.) On February 2, 2022, SCCOE hired Vela as a Mental Health School Wellness Specialist II, a managerial, hourly position. (FAC, ¶ 14.) Vela worked full time for SCCOE until February 28, 2022, when she was terminated. (FAC, ¶ 16.)

As part of her job, Vela was responsible for ensuring compliance with applicable state and federal laws, codes, and regulations related to student support and wellness services. (FAC, ¶ 15.) She was also required to observe health and wellness centers to gain operating knowledge. (FAC, ¶ 18.) When visiting these centers, she encountered employees who reported that they were suffering from a lack of access to ergonomic accommodations and disability accommodations, a lack of phone lines, a lack of locking cabinets, discrimination, and wage theft. (*Ibid*.) Additionally, bilingual employees were not being paid for their language skills. (FAC, ¶ 19.) These violations had a negative impact on those who spoke languages other than English, people with disabilities, and people with workplace injuries. (*Ibid*.)

After discovering these issues, Vela contacted a union representative (Sarah Gianocaro, the Service Employees International Union Chapter President), and reported them to her on a telephone call. (FAC, ¶ 25.) Gianocaro requested that Vela document her complaints by drafting an email to have them addressed by the human resources department. (*Ibid*.)

On February 15, 2022, Katie Taylor, Vela's colleague, emailed Vela regarding ongoing violations of employee rights. (FAC, ¶ 28.) On February 17, 2022, Vela sent an email (the "February 17 email") to Taylor and ten other co-workers, stating that she had spoken to the union steward. (FAC, ¶ 30.) Vela requested that her co-workers send her additional information regarding their use of multiple languages in the workplace. (FAC, p. 9 [image of February 17 email].) She also informed her co-workers to use ticket services to request equipment and ergonomic evaluations. (*Ibid*.) "[S]omehow," someone forwarded the February 17 email to Vela's supervisor (Corrine Freese) and Director Chaunise Powell. (FAC, ¶ 32.)

On February 25, 2022, Vela received an email informing her of a probationary evaluation on February 28, 2022. (FAC, ¶ 33.) At the February 28 meeting, Vela's supervisors informed her that her employment was terminated. (FAC, ¶ 34.) Vela's supervisor later admitted that she was terminated because of the February 17 email. (FAC, ¶ 37.)

On September 20, 2023, Vela filed her original complaint in this case. On February 23, 2024, she filed the FAC, asserting the following causes of action:

1. Retaliation in Violation of Labor Code Section 1102.5;
2. Retaliation in Violation of Labor Code Section 6310;
3. Discrimination in Violation of Government Code Section 12940, Subdivision (a);
4. Retaliation in Violation of Government Code Section 12940, Subdivisions (h), (i); and
5. Failure to Prevent Discrimination in Violation of Government Code Section 12940, Subdivision (k).

On April 15, 2024, SCCOE filed its demurrer to the FAC.

II. LEGAL STANDARD

Vela asserts that SCCOE has misstated the legal standard on demurrer. (Opposition, pp. 3-5, subd. (a).) This court applies the following standard on a demurrer: The court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court." (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.)

III. DEMURRER

SCCOE demurs to the second through fifth causes of action on the ground that they fail to state sufficient facts, under Code of Civil Procedure section 430.10, subdivision (e).

A. Second Cause of Action: Retaliation in Violation of Labor Code Section 6310

SCCOE argues that the second cause of action is deficient because there are no allegations that Vela conveyed any complaint about unsafe working conditions to SCCOE, and because any allegations that Vela had safety concerns conflicts with the text of Plaintiff's February 17 email to employees. (Demurrer, p. 4:16-20.)

Labor Code section 6310 protects employees against discrimination or retaliation for making a good-faith oral or written complaint "about working conditions or practices which [she] reasonably believes to be unsafe, whether or not there exists at the time of the complaint an OSHA standard or order which is being violated." (*Hentzel v. Singer Co.* (1982) 138 Cal.App.3d 290, 299-300 [superseded by statute on other grounds].) Section 6310 "reflects a significant public policy interest in encouraging employees to report health and safety hazards existing in the workplace without fear of discrimination or reprisal." (*Ferrick v. Santa Clara University* (2014) 231 Cal.App.4th 1337, 1350 (*Ferrick*).)

In opposition, Vela contends that the February 17 email raised "multiple health and safety concerns" and that SCCOE cannot deny that Vela's supervisors received her email. (Opposition, p. 6:8-17.) Vela further asserts that her email "[r]equesting" SCCOE follow ergonomic evaluation policies is "'reasonably alerting'" to the employer regarding the nature of the problem and the need to take corrective action. (Opposition, p. 6:18-20.)

Here, the FAC alleges Vela received an email from an employee, Taylor, which addressed the need for employee reimbursement for cellphone use; ergonomic assessments for disability-related accommodations; use of Spanish by uncertified employees; and not using interpreters. (FAC, ¶¶ 28-29.) Vela then sent Taylor and "approximately 10 other coworkers" the February 17 email, the entire text of which appears on page 9 of the FAC. (FAC, ¶ 30.) In the email, Vela states that she spoke to a union steward about bilingual pay and cellphone stipends; requests that those using Spanish on-site send her information relevant to their bilingual usage; and reminds the co-workers that they should open tickets with the Technology Department to request necessary equipment and to open tickets with Risk Management Department to request ergonomic assessments to receive proper chairs, desks, and anything else they might need to protect them while working. (*Ibid*.)

Nothing in the FAC indicates that Vela communicated the contents of this email directly to her supervisors to address safety issues or concerns, only that it was "somehow" forwarded to a supervisor. (FAC, ¶ 33.) This allegation is insufficient to support Vela's argument that the February 17 email establishes that she asked SCCOE to follow safety policies. As SCCOE correctly notes in its opening brief, the February 17 email does not state that Vela is concerned about safety issues; rather, it informs co-workers of the ways in which they can address any concerns they might have. (See *Ferrick*, *supra*, 231 Cal.App.4th at pp. 1350-1351 ["To be protected by a public policy, an employee 'must convey the information in a form which would reasonably alert [her] employer of the nature of the problem and the need to take corrective action.'"].) The email does not mention any other safety concerns identified by Vela in her complaint, including the lack of phone lines, lack of locking file cabinets, inadequate furniture, or poor working conditions. (See Demurrer, p. 4:23-27.)

Because it appears that the entire basis for Vela's claim under Labor Code section 6310 is based on the February 17 email, the court finds that Vela has not sufficiently alleged that she made a good-faith complaint to SCCOE about conditions she reasonably believed to be unsafe, and she has not sufficiently stated a claim under section 6310. The court SUSTAINS the demurrer to the second cause of action with 20 days' leave to amend.[1]

B. Third Cause of Action: Discrimination in Violation of Government Code Section 12940, Subdivision (a)

SCCOE argues that the third cause of action fails for the following reasons: 1) to the extent that it seeks redress for Vela's co-workers under FEHA, she lacks standing to bring the claim; 2) to the extent that Vela is alleging discrimination based on physical or mental disabilities, she also lacks standing; 3) the FAC fails to allege discrimination based on ancestry, national origin, color, or race; and 4) the FAC fails to allege associational discrimination.

Government Code section 12940, subdivision (a), makes it an unlawful employment practice for an employer, because of a protected category, to discharge a person from employment or to discriminate against the employee in compensation, terms, conditions, or privileges of employment.

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[1] Because this is the first pleading challenge, and because it is at least theoretically possible that Vela could amend her pleading to cure the insufficiency of the present allegations, the court grants leave to amend.

1. Vela's Co-Workers

According to SCCOE, the third cause of action fails to the extent it seeks redress for Vela's co-workers under FEHA. (Demurrer, p. 5:16-22, citing *Department of Fair Employment & Housing v. M&N Financing Corp.* (2021) 69 Cal.App.5th 434, 443-444 (*M&N Financing*).) As SCCOE points out, part of Vela's third cause of action is based on alleged discrimination suffered by her co-workers, a grievance as to which she lacks standing. (See Demurrer, p. 5:21-22, citing FAC, ¶ 76.)

Vela responds that she has "clearly . . . alleged that as a nonwhite Latina woman who speaks Spanish, she suffered discrimination prohibited by FEHA, along with other employees." (Opposition, p. 10:10-13.) Vela asserts that *M&N Financing* supports her allegations because she is considered an "aggrieved person" who has a beneficial interest in the controversy. (Opposition, p. 10:14, 20.) In reply, SCCOE asserts that the prima facie showing must establish that she was subject to adverse employment action because of *her* protected category and there is no authority permitting employees to bring "representative actions" under FEHA. (Reply, p. 4:1-9.)

The *M&N Financing* Court explained that an "'aggrieved' party is a person who has standing to sue. . . . To have standing, a party must be beneficially interested in the controversy; that is [she] must have 'some special interest to be served or some particular right to be preserved or protected over and above the interest held in common with the public at large. The party must be able to demonstrate that [she] has some beneficial interest that is concrete and actual, and not conjectural or hypothetical." (*M&N Financing*, *supra*, 69 Cal.App.5th at pp. 443-444 [internal citations and quotations omitted].)

Here, the FAC alleges that SCCOE acted in a discriminatory manner towards Vela and her co-workers based on national origin, language, ancestry, disability, "and related bases." (FAC, ¶ 76.) Vela alleges that she heard reports of: 1) a lack of access to ergonomic accommodations that would help prevent injury and accommodate disabilities; 2) pay discrimination; and 3) lack of compensation for bilingual employees. (FAC, ¶¶ 18-19.) It is not clear from the FAC's allegations how Vela had a beneficial interest in these issues, given that none of this alleged conduct directly happened to her. (See *Osborne v. Yasmeh* (2016) 1 Cal.App.5th 1118, 1133 [addressing discrimination in the context of the Unruh Civil Rights Act, "a plaintiff who only learns about the defendant's allegedly discriminatory conduct, but has not personally experienced it, cannot establish standing"].) The FAC is devoid of allegations that: Vela needed an ergonomic accommodation or notified her employer of any disability; she was paid less based on a protected category; or she required bilingual pay and did not receive bilingual pay. Even if Vela had a beneficial interest in the controversy, her allegations regarding her co-workers appear to be based on hearsay and are conjectural at best. There are no allegations that any specific co-worker had a specific disability and notified their employer about the need for a reasonasble accommodation, or that any specific employee requested bilingual pay.[2] (See e.g., *Featherstone v. Southern California Permanente Medical Group* (2017) 10 Cal.App.5th 1150, 1167 [internal citations and quotation marks omitted][" Nor is an employer ordinarily liable for failing to accommodate a disability of which it had no

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[2] The FAC is also devoid of allegations indicating how bilingual pay is implemented at the SCCOE.

knowledge."].) Thus, Vela does not have standing to bring a claim on behalf of her co-workers.

Although Vela is correct to note that a demurrer does not lie to a portion of a cause of action—and the standing issue applies only to a portion of the third cause of action—that means that the remaining allegations of discrimination *against her* must be sufficient to withstand a demurrer.

2. Disability Discrimination

As noted above, there are insufficient allegations of disability discrimination against Vela. Indeed, Vela concedes that she did not request a disability accommodation in her opposition. (Opposition, p. 11:3-5.) Vela still argues, though, that there was discrimination against her because her February 17 email encouraged employees to seek ergonomic evaluations. (Opposition, p. 10:5-8.) Again, as already noted above, there are no allegations in the FAC that any employees who received the email had a disability or were perceived as having a disability and needing a disability accommodation. Moreover, there is nothing in the February 17 email that suggests the existence of any disability on the part of Vela herself.

3. Ancestry, National Origin, Color, or Race

SCCOE next takes issue with Vela's attempts to maintain a discrimination cause of action based on national origin, language, and ancestry because of unfair pay practices towards employees who spoke Spanish and other non-English languages. (Demurrer, p. 6:5-7, citing FAC, ¶ 76.) As already noted, there are no allegations that Vela was discriminated against because of her own race or ethnicity or because of her use of the Spanish language. In addition, there are no allegations in the FAC that Vela made a complaint about the need for quality, professional, and ethical bilingual services to her employer.

In opposition, Vela contends she "clearly suffered adverse employment action by being terminated as a Spanish speaking Latina person for speaking up about failure to provide quality, professional, and ethical bilingual services." (Opposition, p. 11:17-20.) This argument is unavailing, as it is untethered to any specific allegation contained in the FAC.

4. Associational Discrimination

Finally, SCCOE argues that the third cause of action fails to state a claim for associational discrimination. (Demurrer, p. 6:22-23.)

"FEHA provides a cause of action for associational disability discrimination, although it is a seldom-litigated cause of action." (*Castro-Ramirez v. Dependable Highway Express, Inc.* (2016) 2 Cal.App.5th 1028, 1036.) "Accordingly, when FEHA forbids discrimination based on a disability, it also forbids discrimination based on a person's association with another who has a disability." (*Ibid.*) SCCOE argues that there are no facts supporting a claim that it discriminated against Vela on the basis of her association with a particular race or person with a qualifying disability. (Demurrer, p. 7:3-5.) Having reviewed the FAC, the court agrees. The FAC contains no allegations that Plaintiff associated with anyone of a particular race, national origin, or ancestry, or that she associated with anyone with a qualifying disability. Rather, she sent an email to co-workers notifying them that she was in contact with their union representative and requested information about bilingual speakers, reminding them to file tickets to have their needs met. This does not amount to associational discrimination.

Based on the foregoing, the court SUSTAINS the demurrer to the third cause of action with 20 days' leave to amend.

C. Fourth Cause of Action: Retaliation in Violation of Government Code Section 12940, Subdivisions (h) and (i)

SCCOE demurs to the fourth cause of action on the grounds that unfair pay practices are not claims prohibited by FEHA and there are no facts to support Vela's allegation that she complained to SCCOE about discriminatory practices.

Government Code section 12940, subdivision (h), makes it unlawful for an employer to discharge or otherwise discriminate against any person because that person has opposed any practices forbidden under FEHA or because the person has filed a complaint under FEHA. (Gov. Code, § 12940, subd. (h); *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042 (*Yanowitz*).)

Here, the FAC alleges that SCCOE unlawfully retaliated against Vela by terminating her for reporting complaints of unfair pay practices by employees who spoke Spanish and other languages and for a failure to provide accommodations for physical and mental disabilities. (FAC, ¶ 87.) As noted several times above, there are no allegations that Vela filed a complaint or otherwise notified SCCOE about unfair pay practices or a failure to provide accommodations. Instead, she emailed her co-workers about union-related activity, requested they send her more information, and informed them about filing tickets to get equipment and accommodations. (FAC, ¶ 30; see also FAC, p. 12 [email screenshot stating Vela was terminated after attempting to organize her co-workers around the relevant issues]; *Yanowitz*, *supra*, 36 Cal.4th at p. 1047 ["'the relevant question is not whether a formal accusation of discrimination is made but whether the *employee's communications to the employer* sufficiently convey the employee's reasonable concerns that the employer has acted or is acting in an unlawful discriminatory manner.'"][emphasis added].)

The court SUSTAINS the demurrer to the fourth cause of action with 20 days' leave to amend.

D. Fifth Cause of Action: Failure to Prevent, Investigate, or Remedy Employment Discrimination and Retaliation in Violation of Government Code Section 12940, Subdivision (k)

SCCOE argues that the fifth cause of action is entirely dependent upon the third and fourth causes of action. Given that the demurrer has been sustained to both, the court likewise SUSTAINS the demurrer to the fifth cause of action with 20 days' leave to amend.

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Calendar Lines 3-4
Case Name: *Adrian Mark Jacobs et al. v. General Motors LLC et al.*
Case No.: 24CV433816

Plaintiffs Adrian Mark Jacobs and Karamjit Kaur Kang (together, "Plaintiffs") initiated this Song-Beverly Consumer Warranty Act case against defendant General Motors, LLC ("GM") and Stevens Creek Chevrolet, arising from Plaintiffs' purchase of a 2022 Chevrolet Bolt that allegedly suffered from a defect in its battery (the "Battery Defect"). GM demurs to the fourth and fifth causes of action in the complaint (for fraud and for violation of the Unfair Competition Law). GM has also filed a motion to strike Plaintiffs' prayer for punitive damages.

I. BACKGROUND

A. Facts

According to the complaint, on August 14, 2022, Plaintiffs purchased a 2022 Chevrolet Bolt, manufactured and/or distributed by GM (the "Subject Vehicle"). (Complaint, ¶¶ 4, 6.) Plaintiffs purchased the Subject Vehicle at Capitol Chevrolet, GM's authorized dealer. (*Id.* at ¶ 6.) Plaintiffs allege that they entered a contract with GM containing various warranties as well as setting forth various rights and obligations of both parties. (*Id.* at ¶¶ 7-13.)

GM allegedly became aware of issues with the battery in Chevrolet Bolts in December 2016. (Complaint, ¶ 21.) According to Plaintiffs, GM knew that the batteries could ignite when fully charged or when the charge fell below a 70-mile range. (*Id.* at ¶ 18.) The complaint provides a number of instances from 2015 to 2021 showing GM's alleged knowledge of Chevrolet Bolt battery defects and its marketing of the Chevrolet Bolt as fully functional in spite of these defects. (*Id.* at ¶¶ 19-33.)

In December 2021, Plaintiffs claim that they received a letter from GM Vice President Steve Hill, an officer, director, or managing agent of GM. (Complaint, ¶ 50.) Hill stated in this letter that GM would provide Plaintiffs with a new battery that did not suffer from defects for the Subject Vehicle. (*Id.* at ¶ 51.) From December 2021 to June 2023, Plaintiffs relied on Hill's representation and did not sell the vehicle or ask GM to repurchase the vehicle. (*Id.* at ¶ 53.) Shortly after sending an email in June 2023 that GM would replace the battery in the Subject Vehicle, GM allegedly told Plaintiffs there had been a "misunderstanding" and Plaintiffs would not receive a new battery. (*Id.* at ¶¶ 55, 56.)

B. Procedural History

Plaintiffs filed their complaint on March 25, 2024, alleging causes of action for: (1) violation of the Song-Beverly Act for breach of an express warranty; (2) violation of the Song-Beverly Act for breach of an implied warranty; (3) violation of Civil Code section 1793.2; (4) fraud; (5) violation of Business and Professions Code section 17200; and (6) negligent repair. The first five causes of action were asserted against GM; the sixth cause of action was asserted against only Stevens Creek Chevrolet.

On April 24, 2024, GM filed its demurrer to the fourth and fifth causes of action and a motion to strike punitive damages from the complaint. Plaintiffs filed an opposition to both the